ANDREA TOSATO

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ACADEMIC POSITIONS

Southern Methodist University Dedman School of Law, Dallas, USA.
Professor (2024 – *present*)
Courses Taught: Secured Transactions, Bankruptcy Law, International Business Transactions, Blockchain and the Law, Contracts

University of Pennsylvania Carey Law School, Philadelphia, USA.
Visiting Associate Professor (2019 – 2024)
Courses Taught: Secured Transactions Law, Blockchain and the Law (*2023 Teaching Award*), International Business Transactions

University of Nottingham School of Law, Nottingham, United Kingdom.
Associate Professor (2019 – 2024)
Assistant Professor (2013 – 2018)
Courses Taught: Contracts, Secured Transactions Law, Bankruptcy Law, Company Law, Intellectual Property law, International Sale of Goods, Conflict of Laws

University of Chicago Law School, Chicago, USA.
Visiting Research Fellow (July 2017 – September 2017)

King's College London Dickson Poon School of Law, London, United Kingdom.
Visiting Research Fellow (January 2013 – August 2013)

PUBLICATIONS – Monographs

DIGITAL COMMERCIAL LAW (Oxford University Press, forthcoming 2026) (with Christopher Odinet)

PUBLICATIONS – Articles in Law Reviews and Peer-Reviewed Journals

The Moneyness of Stablecoins, 136 YALE L.J. (forthcoming 2026) (with Christopher Odinet and Yesha Yadav)

Bankrupt Crypto Organizations, 104 N.C. L. REV. (forthcoming 2026) (with Kara Bruce and Christopher Odinet)
- Awarded the ***2026 Submission of the Year Award by the Southeastern Association of Law Schools***

Digital Assets and the Property Question, 78 FLA. L. REV. (forthcoming 2026) (with Christopher Odinet)
- Featured in the Oxford Business Law Blog, 18 March 2025
- Featured in The ALI Adviser, 3 April 2025

Debt Tokens, 173 U. PA. L. REV. (2025) (with Diane Lourdes Dick and Christopher Odinet)
- Featured in The ALI Adviser, 16 May 2024

Crypto in Real Estate Finance, 75 ALA. L. REV. (2023) (with R. Wilson Freyermuth and Christopher Odinet)
- Awarded the ***Shook Hardy Bacon Research Award***

Access To Medicines and Pharmaceutical Patents: Fulfilling The Promise Of TRIPS Article 31bis, 91 FORDHAM L. REV. (2023) (with Ezinne Igboqwe)

The Private Law of Stablecoins, 54 ARIZ. ST. L.J. (2022) (with Kara Bruce and Christopher Odinet)

- Awarded the ***Grant Gilmore Award*** of the American College of Commercial Finance Lawyers in recognition of "superior writing in the field of commercial finance law"
- Cited by the **Bank for International Settlements**, *Cryptocurrencies and decentralised finance: functions and financial stability implications* (2025) (https://www.bis.org/publ/bppdf/bispap156.pdf)

Commercial Law Intersections, 72 HASTINGS L.J. 999 (2021) (peer-reviewed) (with Giuliano G. Castellano)

- Cited by the **World Bank**:
  - *Distributed Ledger Technology and Secured Transactions Frameworks: A Primer* (2020) (https://bit.ly/DLTNote3)
  - *Coordinating Prudential Regulation and Secured Transactions Frameworks: A Primer* (2020)(https://bit.ly/3kHJx0I)
- Featured in the Duke University School of Law FinReg Blog, 30 June 2020 (https://sites.law.duke.edu/thefinregblog/2020/06/30/commercial-law-intersections-coordination-failures-and-the-quest-for-legal-coherence)

Secured Transactions and IP licenses: comparative observations and reform suggestions, 81 LAW & CONTEMP. PROBS. 155 (2018)

- Cited by the **World Bank**, *Collateral Registry, Secured Transactions Law and Practice* (2020) (https://bit.ly/352keSA)
- Featured in the Oxford Business Law Blog, 13 June 2018 (https://www.law.ox.ac.uk/business-law-blog/blog/2018/06/secured-transactions-law-twenty-first-century)

Intellectual Property License Contracts: Reflections on a prospective UNCITRAL Project, 86 U. CIN. L. REV. 1251 (2018)

Commercial agency and the duty to act in good faith, 36 OXFORD JOURNAL OF LEGAL STUDIES 661 (2016) (peer-reviewed)

An exploration of the European dimension of the Commercial Agents Regulations, 39 LLOYD'S MARITIME AND COMMERCIAL LAW QUARTERLY 544 (2013) (peer-reviewed)

- Cited by the Advocate General of the **European Court of Justice**, *The Software Incubator (Self-employed commercial agents - Concepts of 'sale' and 'goods' - Supply of computer software) Opinion of Advocate General Tanchev*, [2020] EUECJ C-410/19_O (17 December 2020)

The protection of traditional foods in the EU: Traditional Specialities Guaranteed, 19 EUROPEAN LAW JOURNAL 545 (2013) (peer-reviewed)

Security interests over intellectual property, 6 JOURNAL OF INTELLECTUAL PROPERTY LAW & PRACTICE 93 (2011) (peer-reviewed)

The UNCITRAL Annex on security rights in IP: a work in progress, 4 JOURNAL OF INTELLECTUAL PROPERTY LAW & PRACTICE 743 (2009) (peer-reviewed)

PUBLICATIONS – Essays, Book Chapters and Book Reviews

Regulating Decentralized Stablecoins: Comparing MiCAR and the GENIUS Act, Iowa L Rev Online (2026) (2026) (with Christopher Odinet)

Regulating Centralized Stablecoins: Comparing MiCAR and the GENIUS Act, NOTRE DAME L. REV. REFLECTION (2026) (with Christopher Odinet)

- Cited by the **Bank of Italy**, *Stablecoins in the Payments Ecosystem: Reflections on Responsible Innovation* (https://www.bancaditalia.it/pubblicazioni/interventi-direttorio/int-dir-2025/20250918-scotti)

Tokenized Real Estate: The Law and Tech of Digital Deeds, OHIO ST. L.J. ONLINE (2026) (with Christopher Odinet) (forthcoming)

- Featured in the Oxford Business Law Blog, 20 October 2025

DAOs in Financial Distress (forthcoming *Foundations of Decentralized Organizations: Blockchain and the Future of Corporate Law*, eds. Kevin Werbach, Eva Micheler, and Bianca Kremer) (with Kara Bruce and Christopher Odinet)

Decentralizing Bankruptcy Law, 44 THE BANKRUPTCY LAW LETTER 1 (2024) (with Kara Bruce and Christopher Odinet)

The Intersection of NFTs and Structured Finance, 103 B.U. L. REV. (2023) (with Christopher Odinet)

Floating Liens Over Crypto-in-Commerce, 99 IND. L.J. (2023) (with Christopher Odinet)

- Featured in The ALI Adviser, 3 July 2023

How to Create a Floating Lien on Digital Assets, BUSINESS LAW TODAY (2023) (with Jordan Jenquin and Christopher Odinet)

Stablecoins in Bankruptcy, 42 THE BANKRUPTCY LAW LETTER 1 (2022) (with Kara Bruce and Christopher Odinet)

Personal Property Security Law: International Ambitions and Local Realities, *in* INTERNATIONAL BUSINESS LAW 283 (Lucio Ghia ed. 2019) (with Giuliano G. Castellano)

- Featured in the Oxford Business Law Blog, 5 June 2020 (https://www.law.ox.ac.uk/business-law-blog/blog/2020/06/unlocking-secured-credit-international-ambitions-and-domestic)

Security interests over intellectual property rights in Italy: critical analysis and reform proposals, *in* INTERNATIONAL AND COMPARATIVE SECURED TRANSACTIONS LAW 259 (Spyridon Bazinas and Orkun Akseli eds. 2017)

Joseph McMahon & Michael Cardwell, Research Handbook on EU Agriculture Law: Book Review, 54 Common Market Law Review 969 (2017)

Jens Hartig Danielsen, EU Agricultural Law: Book Review, 51 Common Market Law Review 1307 (2014)

Amendments to the Italian Code for Industrial Property, GRUR International 1111 (2010)

WORKS IN PROGRESS

Code is Not Law

PUBLICATIONS – Italian Law Commentaries and Case Notes

Commentary to Articles 103-106, 111, 167 Italian Copyright law; Articles 138-140 Industrial Property Code, *in* COMMENTARIO BREVE ALLE LEGGI SU PROPRIETÀ INTELLETTUALE E CONCORRENZA (Luigi C. Ubertazzi, ed. 2019)

Commentary to Articles 103-106, 111, 167 Italian Copyright law; Articles 138-140 Industrial Property Code, *in* COMMENTARIO BREVE ALLE LEGGI SU PROPRIETÀ INTELLETTUALE E CONCORRENZA (Luigi C. Ubertazzi ed. 2016)

Commentary to Articles 103-106, 111, 167 Italian Copyright law; Articles 138-140 Industrial Property Code, *in* COMMENTARIO BREVE ALLE LEGGI SU PROPRIETÀ INTELLETTUALE E CONCORRENZA (Luigi C. Ubertazzi ed. 2012)

Garanzie "reali" e diritti IP: per un censimento dei materiali [A historical analysis of statutory provisions regulating the taking of security in IP rights in Italy], IL DIRITTO D'AUTORE 557 (2009) (peer reviewed)

Case Notes:

- *Trib. Milano, ord. 10 December 2008*, (2009) AIDA 1305
- *Trib. Roma, 16 September 2008*, (2009) AIDA 1306-1312
- *Trib. Roma, 14 June 2007*, (2008) AIDA 1224
- *Trib. Roma, 23 January 2008*, (2008) AIDA 1244
- *Trib. Milano, 24 April 2008*, (2008) AIDA 1247
- *Trib. Milano, 10 December 2006*, (2007) AIDA 1240
- *App. Torino, 13th January 2006*, (2007) AIDA 750-754
- *Cass. 13th June 2006*, (2007) AIDA 686-693
- *Cass. 19th September 2005*, (2007) AIDA 656-664
- *CJEU C-169/05*, (2007) AIDA 585-592
- *Trib. Roma, 3 October 2006*, (2006) AIDA 1175-1177
- *Trib. Roma, 10 July 2006*, (2006) AIDA 1168-1174
- *Trib. Bari, 13 June 2006*, (2006) AIDA 1166-1167
- *Trib. Roma, 20 December 2005*, (2006) AIDA 1146-1151
- *Trib. Milano, 3 December 2004*, (2006) AIDA 1144-1145

TEACHING INTERESTS

Foundation Courses: Contract Law, Tort Law
Elective Courses: Secured Transactions, Bankruptcy Law, Business Organizations, International Business Transactions, Blockchain and the Law, Copyright Law, Trademarks Law, Patent Law

EDUCATION

University of Pavia, Pavia, Italy.
Ph.D. in Commercial Law – Intellectual Property Law (April 2010)
Thesis "I Diritti Di Garanzia su Diritti Di Proprietà Intellettuale" (Security Interests over IP Rights)

University of Cambridge, Cambridge, UK.
LLM in International Commercial Law (Merit) (June 2008)
Thesis "IP Rights As Security For Debt Finance"

University of Pavia, Pavia, Italy.
Laurea in Giurisprudenza (Juris Doctor equivalent) 110/110 *summa cum laude* (April 2006)
Thesis "La Tutela Giuridica Del Software: Diritto D'autore E Brevetto" (Appropriating Software: Patents and Copyright protection)

ACADEMIC AND PROFESSIONAL SERVICE

American Law Institute (ALI)

- Member (October 2025 – *present*)

UNIDROIT – International Institute for the Unification of Private Law

- Member of the Drafting Committee for the Working Group developing the UNIDROIT Principles on Verified Carbon Credits (June 2024 – present)
- Member of the Drafting Committee for the Working Group developing the UNIDROIT Principles on Digital Assets (April 2022 – May 2023)
- Member of the Working Group developing the UNIDROIT Model Law on Warehouse Receipts (April 2022 – May 2024)

Uniform Law Commission

- Study Committee on Commercial Law Framework for Voluntary Carbon Credits (September 2024 – present)
    - Co-Reporter

- Drafting Committee on the Virtual Currency Customer Protection Act (June 2023 – April 2025)
    - Reporter
- Permanent Editorial Board for the Uniform Commercial Code (March 2022 – present)
    - Associate Research Director (co-appointment with Professor Carla Reyes)
- Enactment Committee for the 2022 Uniform Commercial Code Amendments (August 2022 – present)
- UCC and Emerging Technologies Committee (Joint Committee with the American Law Institute) (June 2019 – July 2022)
    - Member of the Digital Assets Working Group
    - Member of the Governing Law Working Group
    - Member of the Documents of Title Working Group

American Bar Association Business Law Section – Uniform Commercial Code

- Co-Chair, Sub-Committee for UCC and Emerging Technologies (September 2022 – present)
- Vice Chair, Sub-Committee for UCC Article 2 and 7 (March 2022 – present)
- Member of the Task Force on Tokenized Payment Instruments (August 2022 – present)

Italian Ministry of Foreign Affairs

- Advisor for International Commercial Law affairs (2008 – 2020)
- Delegate to the United National Commission on International Trade Laws (UNCITRAL) (2008 – 2017), representing the Italian government in the negotiations for:
    - The UNCITRAL Model Law on Secured Transactions: Guide to Enactment (2017);
    - UNCITRAL Model Law on Secured Transactions (2016);
    - UNCITRAL Guide on the Implementation of a Security Rights Registry (2013);
    - UNCITRAL Legislative Guide on Secured Transactions: Supplement on Security Rights in Intellectual Property (2010)

Kozolchyk National Law Center

- Content director for International Development Bank funded project to facilitate the use of IP rights as collateral in Jamaica (January 2021 – June 2022)
- Content director for the IFC-World Bank report on the impact of blockchain technology on secured transactions law reform (January 2018 – March 2020)
- Content director for the UNIDROIT Report on the best practices for electronic collateral registries (June 2019 – September 2019)

AWARDS – SCHOLARSHIPS

Southeastern Association of Law Schools. Paper of the Year (2026)

Southern Methodist University. Provost Research Fellowship Award (2025)

University of Missouri. Shook Hardy Bacon Research Award (2024)

American College of Commercial Finance Lawyers. Grant Gilmore Award for Superior Writing in Commercial Finance (2023)

University of Pennsylvania Carey Law School. Teaching Award for Blockchain and the Law course (June 2023)

University of Nottingham. Nominated for LLM lecturer of the year award (December 2017)

University of Nottingham. Nominated for the University of Nottingham Student Union Teaching Award (February 2017)

University of Nottingham. LLM lecturer of the year award (March 2016)

University of Pavia. Italian Government Ph.D. scholarship (September 2006 – April 2010)

PRESENTATIONS AND INVITED TALKS

UNCITRAL Colloquium: Colloquium on Harmonizing Law in the Age of Digital Trade and Finance, New York City. 'Control As A Method For Third Party Effectiveness For Security Rights' (2026)

The Federal Reserve Bank of Dallas, Dallas. 'The Law and Regulation of Stablecoins' (2026)

Association of American Law Schools, New Orleans. 'Bankrupt Crypto Organizations' (2026)

Association of American Law Schools, New Orleans. 'Regulating Centralized Stablecoins' (2026)

Pacific Law Foundation, Arlington. '"Bundle of Sticks" Has Become Inadequate for Modern Digital Assets and Should Be Refined' (2025)

American Bar Association, Business Law Section, Toronto. 'Decrypting Crypto: Valuation, Due Diligence, and Legal Risks for Lenders' (2025)

The Federal Reserve Bank of New York, New York City. 'Crypto and the Property Question' (2025)

UNCITRAL Colloquium: Navigating the new era of digital finance, New York City. 'Verified Carbon Credits as Collateral in Secured Transactions' (2025)

VII Conference on International Coordination of Secured Transactions Reform. 'Verified Carbon Credits: Private Law Regime and Use as Collateral' (2024)

Practicing Law Institute, San Francisco. 'NFTs in Commercial Transactions' (2024)

Harvard University, Harvard-Wharton Insolvency and Restructuring Conference, Boston. 'DAOs in Financial Distress' (2024)

University of Pennsylvania, Regulation & Governance Conference, Philadelphia. 'Debt Tokens' (2024)

BYU/UChicago, Winter Bankruptcy Conference, Park City. 'Debt Tokens' (2024)

American Bar Association, Business Law Section. 'From Traditional to Digital: The Evolving Legal Landscape of Commercial Transactions' (2024)

Office of the Comptroller of The Currency, Washington DC. 'Tokenization' (2024)

University of Chicago, Chicago. 'Digital Assets & the 2022 UCC Amendments' (2024)

Association of American Law Schools, Washington DC. 'Debt Tokens' (2024)

American Bar Association, Business Law Section. 'Busting Myths About Digital Assets and Uncovering the True Technology Mechanics Impacting Your Clients and Practice' (2023)

UNIDROIT, Rome. '*The DAPL Principles and the Transfer of Digital Assets*' (2023)

TerraLex/ACC, New York. '*2022 UCC Amendments and the Dawn of Controllable Electronic Records*' (2023)

American Bar Association, Business Law Section 2023. 'Introducing Article 12 of the Uniform Commercial Code' (2023)

KCON, Texas A&M Law School, Fort Worth. *'UCC Article 12: It's All About Control!'* (2023)

Association of American Law Schools, San Diego. 'Digital Assets, Virtual Currencies, & UCC Reform' (2023)

The Federal Reserve Bank of New York, New York. 'The Private Law of Stablecoins' (2022)

Baruch College, New York City. 'The emerging private law framework for digital assets' (2022)

UNIDROIT, Rome. 'Enforcement and Digital Assets: Rights of Secured Creditors' (2022)

Brooklyn Law School, New York City. 'Commercial Law Harmonization: Past as Prologue' (2022)

American Bar Association, Business Law Section 2022 Spring Meeting, Atlanta. College of Commercial Finance Lawyers. 'UCC and Emerging Technologies' (2022)

American College of Commercial Finance Lawyers. 'UCC and Emerging Technologies' (2021)

University of Wien. Vienna. 'ULC/ALI Project on Digital Assets: Comparative observations' (2021)

UNIDROIT. Rome. 'Model Law on Warehouse Receipts: Contractual Issues' (2020)

UNIDROIT. Rome. 'Distributed Ledger Technology and international sales of commodities' (2019)

Universidad Carlo III Madrid, II Conference on International Coordination of Secured Transactions Law Reforms. 'Distributed ledger technology as the bridge between general secured transactions registers and assets specific registration systems?' (2018)

American Bar Association, Business Law Section 2017 Meeting, New Orleans. 'Making the Intangible Untouchable: Creating, Perfecting and Enforcing Security Interests in Intangibles in Cross-Border Transactions' (2017)

UNCITRAL, Fourth International Colloquium on Secured Transactions, Vienna. 'International principles of contract law for IP licences' (2017)

University of Leeds, Secured Transaction Law Reform Conference. 'Priority rules for the taking of security over IP rights in English law: the case for reform' (2017)

Secured Transaction Law Reform Conference, London. 'Taking security over IP'' (2015)

Italian Ministry of Foreign Affairs. 'The Italian legal framework for personal property security: the case for reform' (2014)

University of Glasgow, Yearly Intellectual Property Conference. 'Security interests over IP rights under English, Scottish and International Law' (2011)

International Chamber of Commerce of Istanbul. 'Taking security over IP rights under the UNCITRAL legislative guide on Security Interests' (2010)

Yeditepe University, Istanbul. 'The legal nature of IP rights: past, present and future' (2010)

TEACHING EXPERIENCE

University of Bournemouth. Lecturer in Commercial law, IP law and International law (2011 – 2013)

University of Pavia. Lecturer in Trademarks law and Roman law (2010 – 2011)

University of Florence. Lecturer in Copyright Law and European Union law (2008 – 2011)

LANGUAGES

Italian, English and French. Fluent

Spanish and German. Competent

REFERENCES

United States of America

Professor David Hoffman
William A. Schnader Professor of Law, Deputy Dean, University of Pennsylvania
Email: dhoffman@law.upenn.edu

Professor Christopher Odinet
Josephine R. Witte Professor of Law, Professor of Law & Mosbacher Research Fellow, Texas A&M
Email: codinet@law.tamu.edu

Professor Charles W. Mooney Jr.
Charles A. Heimbold, Jr. Professor of Law, Emeritus, University of Pennsylvania
Email: cmooney@law.upenn.edu

Professor Kara Bruce
Graham Kenan Distinguished Professor of Law, University of North Carolina School of Law
Email: kbruce1@unc.edu

Professor Edward Janger
David M. Barse Professor of Law, Brooklyn Law School
Email: edward.janger@brooklaw.edu

Professor Neil B. Cohen
1901 Distinguished Research Professor of Law, Brooklyn Law School
Email: neil.cohen@brooklaw.edu

United Kingdom

Professor Howard Bennett
Hind Professor of Commercial Law, University of Nottingham
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Professor Louise Gullifer
Rouse Ball Professor of English Law, Chair of the Faculty Board
University of Cambridge
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International Organizations

Professor Ignacio Tirado
Secretary General of The International Institute for the Unification of Private Law (UNIDROIT)
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